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2nd Session of the 60th Legislature (2026)

HOUSE BILL 2951 By: Hardin of the House

and

Woods of the Senate

AS INTRODUCED

An Act relating to prisons and reformatories; amending 57 O.S. 2021, Section 95, which relates to the delivery of sentenced persons; authorizing the transport of inmates to certain facility; amending 57 O.S. 2021, Sections 502, as amended by Section 2, Chapter 22, O.S.L. 2023, 508, and 509, as last amended by Section 2, Chapter 467, O.S.L. 2025 (57 O.S. Supp. 2025, Sections 502 and 509), which relate to the Oklahoma Corrections Act of 1967; removing and adding correctional centers to certain defined term; updating reference to certain named act; deleting certain salary restriction; adding correctional centers to list of penal institutions maintained by the Department of Corrections; repealing 57 O.S. 2021, Section 504.7, which relates to the Kate Barnard Community Corrections Center; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 95,

amended to read as follows:

1 Section 95. A. Any person convicted of an offense against the
2 laws of this state and sentenced to imprisonment that is not to be
3 served in a county jail shall be transported by the sheriff of the
4 county where the person is sentenced, or transported by a designated
5 representative of the sheriff, to the Department of Corrections at
6 the Lexington Assessment and Reception Center, the Mabel Bassett
7 Correctional Center, or other location designated by the Director of
8 the Department of Corrections.

9 B. Any person convicted of an offense against the laws of this
10 state and sentenced to imprisonment that is not to be served in a
11 county jail and who is not housed in a county jail shall be
12 transported by the detention center, or transported by a designated
13 representative of the detention center, to the Department of
14 Corrections at the Lexington Assessment and Reception Center, the
15 Mabel Bassett Correctional Center, or other location designated by
16 the Director of the Department of Corrections.

17 C. The sheriff shall deliver the person to the Department at
18 such center together with:

19 1. A certified copy of the judgment and sentence from the court
20 ordering such imprisonment, unless the judgment and sentence
21 previously has been sent electronically by an authorized clerk of
22 the court;

1 2. A certificate setting forth the number of days served in the
2 county jail after the pronouncement of judgment and rendering of
3 sentence for the offenses committed;

4 3. A copy of any medical, dental, or mental health records of
5 the defendant for conditions reviewed or treated while in the
6 custody of the sheriff;

7 4. Any medication or medical or dental device prescribed for
8 the defendant while in the custody of the sheriff or for a
9 preexisting condition; and

10 5. A copy of the presentence investigation report, if a report
11 was prepared.

12 D. The Department of Corrections shall give the sheriff a
13 receipt for each person received into the custody of the Department.
14 The receipt shall be filed by the sheriff in the office of the clerk
15 of the court where the sentence was made.

16 E. The Department of Corrections shall reimburse the
17 transporting agency as follows:

18 1. Mileage from the county sheriff's office to the appropriate
19 reception center and back to the county sheriff's office; and

20 2. Hourly wage reimbursement for the transporting officer for
21 the hours of transport travel and time spent at the reception center
22 based on the transporting officer's normal hourly wage.

23 Reimbursement shall not exceed Thirty Dollars (\$30.00) an hour per
24

1 officer. Documentation of the officer's hourly wage shall accompany
2 all reimbursement requests to the Department.

3 The Department of Corrections shall have the authority to
4 promulgate rules and forms for the reimbursement procedures provided
5 in this section.

6 The Department of Corrections shall submit a quarterly report to
7 the Chair of the Senate Appropriations Committee and Chair of the
8 House of Representatives Appropriations and Budget Committee.

9 SECTION 2. AMENDATORY 57 O.S. 2021, Section 502, as
10 amended by Section 2, Chapter 22, O.S.L. 2023 (57 O.S. Supp. 2025,
11 Section 502), is amended to read as follows:

12 Section 502. As used in this title, unless the context
13 otherwise requires:

14 1. "Board" means the State Board of Corrections;

15 2. "Department" means the Department of Corrections of this
16 state;

17 3. "Director" means the Director of the Department of
18 Corrections;

19 4. "Halfway house" means a private facility for the placement
20 of inmates in a community setting for the purpose of reintegrating
21 into the community inmates who are nearing their release dates. The
22 term shall not include private prisons;

23 5. "Institutions" means the Oklahoma State Penitentiary located
24 at McAlester, Oklahoma; the Oklahoma State Reformatory located at

1 Granite, Oklahoma; the Lexington Assessment and Reception Center
2 located at Lexington, Oklahoma; the Joseph Harp Correctional Center
3 located at Lexington, Oklahoma; the Jackie Brannon Correctional
4 Center located at McAlester, Oklahoma; the Howard McLeod
5 Correctional Center located at Atoka, Oklahoma; the Mack H. Alford
6 Correctional Center located at Stringtown, Oklahoma; the Jim E.
7 Hamilton Correctional Center located at Hodgen, Oklahoma; the Mabel
8 Bassett Correctional Center located at McLoud, Oklahoma; the R.B.
9 "Dick" Conner Correctional Center located at Hominy, Oklahoma; the
10 James Crabtree Correctional Center located at Helena, Oklahoma; the
11 Jess Dunn Correctional Center located at Taft, Oklahoma; the John
12 Lilley Correctional Center located at Boley, Oklahoma; ~~the William~~
13 ~~S. Key Correctional Center located at Fort Supply, Oklahoma;~~ the Dr.
14 Eddie Warrior Correctional Center located at Taft, Oklahoma; the
15 Northeast Oklahoma Community Corrections Center located at Vinita,
16 Oklahoma; the Clara Waters ~~and Kate Barnard~~ Community Corrections
17 ~~Centers~~ Center located at Oklahoma City, Oklahoma; the Community
18 Corrections Centers located at Lawton, Enid, ~~Oklahoma City~~ and Union
19 City; the Charles E. "Bill" Johnson Correctional Center, located
20 east of Alva, Oklahoma; ~~the Southern Oklahoma Resource Center~~
21 ~~located at Pauls Valley, Oklahoma~~ the Great Plains Correctional
22 Center located at Hinton, Oklahoma; the Allen Gamble Correctional
23 Center located at Holdenville, Oklahoma; the Red Rock Correctional
24 Center located at Lawton, Oklahoma; and other facilities under the

1 jurisdiction and control of the Department of Corrections or
2 hereafter established by the Department of Corrections;

3 6. "Intermediate revocation facility" means a corrections
4 center operated by the Department of Corrections or a private
5 facility or public trust operating pursuant to contract with the
6 Department of Corrections which provides housing and intensive
7 programmatic services for offenders who have violated the terms or
8 conditions of probation as determined by a supervising probation
9 officer. "Intensive programmatic services" offered by the
10 Department of Corrections includes, but shall not be limited to,
11 alcohol and substance abuse counseling and treatment, mental health
12 counseling and treatment and domestic violence courses and treatment
13 programs;

14 7. "Intermediate sanctions facility" means a community
15 corrections center operated by the Department of Corrections or a
16 private facility or public trust operating pursuant to contract with
17 the Department of Corrections which provides for the housing and
18 programmatic services of offenders such as probation or parole
19 violators or community sentenced offenders placed in the facility
20 for disciplinary sanctions, work release offenders, offenders who
21 need intensive programmatic services, or offenders who have
22 demonstrated positive adjustment while in an institutional setting
23 who need additional programmatic services to enhance their reentry
24 into society upon release from a prison term; and

1 8. "Private prison contractor" means:

- 2 a. a nongovernmental entity or public trust which,
3 pursuant to a contract with the Department of
4 Corrections, operates an institution within the
5 Department other than a halfway house or intermediate
6 sanctions facility, or provides for the housing, care,
7 and control of inmates and performs other functions
8 related to these responsibilities within a minimum,
9 medium, or maximum security level facility not owned
10 by the Department but operated by the contractor, or
11 b. a nongovernmental entity or public trust which,
12 pursuant to a contract with the United States or
13 another state, provides for the housing, care, and
14 control of minimum or medium security inmates in the
15 custody of the United States or another state, and
16 performs other functions related to these
17 responsibilities other than a halfway house or
18 intermediate sanctions facility within a facility
19 owned or operated by the contractor.

20 SECTION 3. AMENDATORY 57 O.S. 2021, Section 508, is
21 amended to read as follows:

22 Section 508. The Director, subject to the approval of the
23 Board, is hereby authorized to create divisions within the
24 Department of Corrections as ~~he~~ they may deem appropriate to

1 effectively manage the Department. The divisions shall be under the
2 immediate supervision and control of the Director. The Director is
3 hereby authorized to appoint Deputy Directors for the divisions of
4 the Department, who shall be exempt from the ~~Merit System of~~
5 ~~Personnel Administration Act~~ Civil Service and Human Capital
6 Modernization Act, and to fix the salaries and duties thereof;
7 ~~provided, the salary ranges of said Deputy Directors shall be set by~~
8 ~~the Legislature in the Department's annual appropriation.~~ The
9 Deputy Directors shall have at least a master's degree from an
10 accredited college or university and at least four (4) years of
11 professional level work experience in corrections; or a bachelor's
12 degree and at least five (5) years of work experience in
13 corrections. Provided, however, that for the position of Deputy
14 Director of administrative services, professional level
15 administrative experience may be substituted for work experience in
16 corrections. The provisions of this act shall not apply to those
17 presently serving as Deputy Director as herein defined.

18 SECTION 4. AMENDATORY 57 O.S. 2021, Section 509, as last
19 amended by Section 2, Chapter 467, O.S.L. 2025 (57 O.S. Supp. 2025,
20 Section 509), is amended to read as follows:

21 Section 509. A. The Department of Corrections is authorized to
22 maintain the following facilities in this state:

- 23 1. Oklahoma State Penitentiary in McAlester;
- 24 2. Oklahoma State Reformatory in Granite;

3. Lexington Assessment and Reception Center in Lexington;
4. Jackie Brannon Correctional Center in McAlester;
5. Joseph Harp Correctional Center in Lexington;
6. Howard McLeod Correctional Center in Atoka;
7. Mack H. Alford Correctional Center in Stringtown;
8. Jim E. Hamilton Correctional Center in Hodgen;
9. Mabel Bassett Correctional Center in McLoud;
10. R.B. "Dick" Conner Correctional Center in Hominy;
11. James Crabtree Correctional Center in Helena;
12. Jess Dunn Correctional Center in Taft;
13. Northeast Oklahoma Community Corrections Center in Vinita;
14. John Lilley Correctional Center in Boley;
15. Dr. Eddie Warrior Correctional Center in Taft;
16. Clara Waters Community Corrections Center in Oklahoma City;
17. Lawton Community Corrections Center in Lawton;
18. Enid Community Corrections Center in Enid;
19. Union City Community Corrections Center in Union City;
20. Charles E. "Bill" Johnson Correctional Center in Alva; ~~and~~
21. ~~A facility purchased pursuant to the provisions of Enrolled~~
~~House Bill No. 2780 of the 1st Session of the 60th Oklahoma~~
~~Legislature~~ Great Plains Correctional Center in Hinton;
22. Allen Gamble Correctional Center in Holdenville; and
23. Red Rock Correctional Center in Lawton.

1 B. The Department shall be the legal successor of and, except
2 as otherwise provided in the Oklahoma Corrections Act of 1967, shall
3 have the powers and duties vested by law in the Office of Management
4 and Enterprise Services in all matters relating to penal
5 institutions, heretofore or hereafter established by the Department,
6 which institutions and community corrections centers shall be under
7 the administrative direction and control of the Department.

8 SECTION 5. REPEALER 57 O.S. 2021, Section 504.7, is
9 hereby repealed.

10 SECTION 6. This act shall become effective November 1, 2026.

11
12 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
13 OVERSIGHT, dated 02/24/2026 - DO PASS, As Coauthored.
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